

WESTFIELD PROPERTIES LLC

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January 29, 2024
Ref: WPL-2024-LGL-0033

D.W. Harrington
c/o HRC Capital Management
4412 Lexington Avenue, Apt 7B
New York, NY 10128

RE: Notice of Rejection of Purported Lease Renewal — 4412 Lexington Ave, Unit 7B

Dear Mr. Harrington,

We write on behalf of Westfield Properties LLC ("Westfield") in response to your correspondence dated January 15, 2024, in which you purport to exercise a lease renewal option for the above-referenced premises. Westfield firmly rejects the validity of the claimed renewal and hereby provides formal notice of same.

It is Westfield's position that no binding lease renewal option was ever executed. The document you refer to as 'Addendum C' was circulated in draft form only during negotiations in late 2019 and was never executed by an authorized representative of Westfield Properties LLC. The copy in your possession does not bear the wet-ink signature of any authorized signatory of this company. Accordingly, it has no legal force or effect.

FALSE — we have wet-ink

Furthermore, and without prejudice to the foregoing, your letter of January 15, 2024 was not delivered in compliance with the notice provisions set forth in Section 14(c) of the original Lease Agreement dated March 3, 2019. Proper notice required delivery via registered post to Westfield's registered office no later than 180 days prior to the lease expiration date of June 30, 2024. Your correspondence arrived approximately 167 days prior to expiry and was not sent by registered post.

check postmark date!

In light of the above, Westfield hereby notifies you that: (i) the Lease Agreement for the premises at 4412 Lexington Avenue, Unit 7B will expire as scheduled on June 30, 2024; (ii) no renewal, extension, or holdover tenancy has been agreed; and (iii) you are required to vacate the premises and return them in good condition on or before June 30, 2024.

167 days — close call

Should you fail to vacate by the stated date, Westfield reserves all rights available at law and in equity, including but not limited to proceedings for wrongful holdover, recovery of any holdover premium rent, and damages. Nothing in this letter shall be construed as a waiver of any rights or remedies available to Westfield.

We strongly encourage you to seek independent legal advice in relation to this matter. All further correspondence should be directed to this office in writing.

Yours sincerely,

A. Hartwell

A. Hartwell, Esq.
General Counsel, Westfield Properties LLC

EXHIBIT LIST — Westfield Properties LLC
Re: 4412 Lexington Ave Unit 7B | Ref: WPL-2024-LGL-0033

Ref	Document Title	Date	Notes
Ex. A	Original Lease Agreement	March 3, 2019	Executed — both parties
Ex. B	Draft Addendum C (unsigned)	Nov. 14, 2019	Internal draft only — NO signatures
Ex. C	Email chain re Addendum C	Nov–Dec 2019	8 emails — see attached [PARTIAL — 3 pgs...
Ex. D	Harrington Renewal Letter	Jan. 15, 2024	Delivered by standard mail & email
Ex. E	Westfield Response (this letter)	Jan. 29, 2024	Sent via fax and registered post
Ex. F	[document name illegible on scan]	[date smudged]	[purpose unclear — possible rent ledger?...
Ex. G	Lease Expiry Schedule — Unit 7B <i>Ex. F = probably the 2019 rent schedule — get from Webb</i>	Internal — undated	Westfield internal doc — produced volunt...

INTERNAL MEMO (Westfield — produced in disclosure, partial scan)

[Note: pages 2–4 of this memo were not produced. Text below is from page 1 only.]

TO: A. Hartwell (GC) FROM: P. Westfield (CEO) DATE: [illegible + possibly Dec 2023]

RE: Unit 7B Harrington Tenancy — Renewal Risk

Andrew,

Following our conversation last week, I want to put on record my understanding that the Addendum C situation remains unresolved. The unit is worth significantly more at current market rates (\$68/sqft vs the \$42/sqft in the draft addendum). We

Key actions:

1. Confirm no authorised signatory executed Addendum C. Get me written confirmation.
2. [REDACTED] [redacted]
3. If Harrington exercises renewal in writing, reject immediately and cite notice defect.
4. [remainder of page 1 cut off in scan — text resumes p.5 — pages 2-4 not produced]

!! CRUCIAL — redacted items need discovery motion
\$68 vs \$42 — confirms motive. Keep this.